

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

4. SARAH LAVAGNINO V. ANTHONY LAVAGNINO

PFL20090640

On January 30, 2026, Petitioner filed a Request for Order (RFO) seeking to enforce the court's prior orders. All required documents were personally served on February 23, 2026.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure "as an admission that the motion or other application is meritorious." El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. He had notice of the pending request and chose not to file an opposition. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Petitioner asks the court to enforce its prior orders regarding sanctions and the marital residence located at 222 Price Way in Folsom. The Judgment of Dissolution was entered on January 21, 2011. Respondent failed to abide by those terms therefore, on May 1, 2014, the court entered an order imposing sanctions on Respondent and granting Petitioner the right to sell the marital residence. To date, Respondent has not complied and the residence has not been sold.

Pursuant to Family Code § 291 "[a] money judgment or judgment for possession or sale of property that is made or entered under this code, including a judgment for child, family, or spousal support, is enforceable until paid in full or otherwise satisfied." Fam. Code § 291.

Here, Respondent has repeatedly failed to comply with court orders and as such, the court retains jurisdiction to enforce those orders. Accordingly, Respondent is ordered to relinquish possession of the premises located at 222 Price Way in Folsom, CA immediately. Petitioner is authorized to sell the home and utilize Respondent's portion of the net proceeds to satisfy the balance owed to her pursuant to the court's prior orders.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: RESPONDENT IS ORDERED TO RELINQUISH POSSESSION OF THE PREMISES LOCATED AT 222 PRICE WAY IN FOLSOM, CA IMMEDIATELY. PETITIONER IS AUTHORIZED TO SALE THE HOME AND UTILIZE RESPONDENT'S PORTION OF THE

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NET PROCEEDS TO SATISFY THE BALANCE OWED TO HER PURSUANT TO THE COURT'S PRIOR ORDERS.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.